

1 CASE NUMBER: GA043471
2 CASE NAME: PEOPLE VS. MICHAEL DEMIRDJIAN
3 PASADENA, CALIFORNIA WEDNESDAY, APRIL 4, 2001
4 DEPARTMENT NEJ HON. JOSEPH F. DE VANON, JUDGE
5 REPORTER: SHARON P. BOYER, CSR #4329
6 TIME: P.M. SESSION
7 APPEARANCES:

8 PRESENT IN COURT IS THE
9 DEFENDANT, MICHAEL DEMIRDJIAN,
10 WITH COUNSEL, CHARLES MATHEWS,
11 ATTORNEY AT LAW;
12 AND THE PEOPLE REPRESENTED BY
13 STEVEN BARSHOP AND TRUC DO,
14 DEPUTIES DISTRICT ATTORNEY,
15 REPRESENTING THE PEOPLE OF THE
16 STATE OF CALIFORNIA:

17
18 (OTHER PROCEEDINGS WERE REPORTED,
19 BUT NOT TRANSCRIBED HEREIN, THEN
20 THE FOLLOWING PROCEEDINGS RESUMED
21 IN OPEN COURT IN THE PRESENCE OF
22 THE JURY:)

23
24 MS. DO: PEOPLE CALL DETECTIVE ROBERT
25 ZAHREDDINE.

26 THE CLERK: STAND BEHIND THE REPORTER AND
27 RAISE YOUR RIGHT HAND:

27 A I AM ASSIGNED AS BUNCO/FORGERY
28 INVESTIGATOR, AND ALSO A COMPUTER FORENSIC

1 INVESTIGATOR.

2 Q HOW LONG HAVE YOU BEEN A SWORN
3 POLICE OFFICER?

4 A NINE YEARS AND EIGHT MONTHS.

5 Q HOW LONG HAVE YOU BEEN ASSIGNED TO
6 COMPUTER FORENSICS AND INVESTIGATION UNITS?

7 A APPROXIMATELY TWO YEARS.

8 Q HAVE YOU BEEN INVOLVED IN COMPUTERS
9 IN PRIOR TO BEING ASSIGNED TO THAT UNIT.

10 A YES, I HAVE.

11 Q CAN YOU BRIEFLY DESCRIBE THAT.

12 A INVOLVED IN COMPUTERS SINCE 1979. I
13 HAVE AN ASSOCIATE OF SCIENCE DEGREE IN COMPUTER
14 SCIENCE AND ELECTRONICS, TECHNOLOGY CERTIFIED
15 COMPUTER TECHNICIAN.

16 I WAS -- WORKED AS A NETWORK AND
17 COMPUTER ADMINISTRATOR AND IN THE PRIVATE FIELD
18 WHERE I HAVE CUSTOM INSTALLED AND CUSTOM CONFIGURED
19 COMPUTERS FOR NETWORKS AND FOR BUSINESSES.

20 SINCE I HAVE BEEN A POLICE OFFICER,
21 I HAVE BEEN INVOLVED IN NUMEROUS, WHAT WE CALL
22 NUMEROUS BOARDS THAT WE GET TOGETHER ON, THE
23 IMPLEMENTATION OF COMPUTER PROGRAMS AND COMPUTERS
24 FOR THE DEPARTMENT.

25 I HAVE MADE AND CONFIGURED AND
26 CUSTOMIZED COMPUTER PROGRAMS FOR THE DEPARTMENT.

27 I HAVE ATTENDED A 40-HOUR CLASS WITH
28 THE SAN JOSE STATE UNIVERSITY ON ADVANCED FRAUD

1 INVESTIGATION AND COMPUTER INVESTIGATIONS.

2 I HAVE ATTENDED A 40-HOUR CLASS WITH
3 THE NATIONAL WHITE COLLAR CRIME ABOUT COMPUTER
4 FORENSICS AND DATA ACCESS.

5 I ALSO ATTENDED 24 HOURS WITH
6 GUIDANCE SOFTWARE. THEY ARE THE MAKERS ENCASE
7 FORENSICS SOFTWARE.

8 INSTRUCTOR AND TRAINED OTHER OFFICER
9 IN COMPUTER FORENSICS AND HIGH TECHNOLOGY
10 INVESTIGATIONS.

11 Q WERE YOU AFFILIATED WITH ANY
12 ORGANIZATIONS DEALING WITH COMPUTERS IN LAW
13 ENFORCEMENT?

14 A I AM A NEW MEMBER OF THE H.T.C.I.
15 INTERNATIONAL HIGH TECHNOLOGY CRIME INVESTIGATION
16 ASSOCIATION.

17 H.T.C.C., WHICH IS HIGH TECH CRIME,
18 COPS, COMPUTER CRIME COPS MEMBER ALSO T.I.A., WHICH
19 IS TECHNICAL INVESTIGATION'S ACADEMY.

20 Q OKAY.

21 HOW MANY FORENSIC -- COMPUTER
22 FORENSIC INVESTIGATIONS HAVE YOU PARTICIPATED IN?

23 A WELL OVER 30.

24 Q HAVE YOU PARTICIPATED IN
25 INVESTIGATIONS WITH FEDERAL AGENCIES?

26 A YES, BOTH THE FBI, THE SECRET

27 SERVICE, AND RECENTLY THE U.S. POSTAL INSPECTOR.

28 Q COULD YOU DESCRIBE THE NATURE OF
1 THOSE INVESTIGATIONS WITH THE FBI.

2 A MOST OF THE INVESTIGATIONS WITH THE
3 FBI WAS INVOLVING CHILD LURING OVER THE INTERNET
4 AND CHILD PORNOGRAPHY.

5 Q SO, YOUR EXPERTISE HAS BEEN SOUGHT
6 BY OTHER AGENCIES OTHER THAN GLENDALE?

7 A YES.

8 MS. DO: YOUR HONOR, AT THIS TIME I HAVE A
9 TWO-PAGE DOCUMENT REPRESENTING DETECTIVE
10 ZAHREDDINE'S RESUME.

11 MAY I HAVE IT MARKED AS PEOPLE'S
12 NEXT IN ORDER?

13 THE COURT: PEOPLE'S 76.

14 MS. DO: 76?

15 THE COURT: YES.

16

17 (PEOPLE'S EXHIBIT 76 WAS MARKED FOR
18 IDENTIFICATION: RESUME.)

19

20 BY MS. DO:

21 Q DETECTIVE, PEOPLE'S 76, IS THAT YOUR
22 RESUME?

23 A YES, IT IS.

24 Q AND DOES IT REFLECT ALL THE TRAINING
25 AND EXPERIENCE THAT YOU HAVE JUST DESCRIBED FOR US.

26 A YES, IT DOES.

27 Q WERE YOU -- IN THE MONTH OF JULY,
28 AROUND THE 28TH OF JULY, YEAR 2000, DID YOU

94

1 PARTICIPATE IN A SEARCH WARRANT AT MICHAEL
2 DEMIRDJIAN'S HOME?

3 A YES, I DID.

4 Q WHEN YOU WERE AT MICHAEL
5 DEMIRDJIAN'S HOME, PURSUANT TO A SEARCH WARRANT,
6 DID YOU SEIZE A COMPUTER?

7 A YES, I DID.

8 Q WAS THAT A DESKTOP COMPUTER?

9 A YES.

10 Q DO YOU RECALL FROM WHICH LOCATION
11 FROM THE HOUSE YOU SEIZED THAT COMPUTER?

12 A IT WAS IN A BEDROOM. IF I REMEMBER,
13 IT WAS IN A SOUTHEAST CORNER OF THE HOUSE. IT WAS
14 REFERRED TO BY MR. DEMIRDJIAN'S FATHER AS THE
15 DEFENDANT DEMIRDJIAN'S BEDROOM, HIS SON'S ROOM.

16 Q AND AFTER SEIZING THE COMPUTER, DID
17 YOU THEN TAKE THAT BACK TO GLENDALE FOR
18 EXAMINATION?

19 A YES, I DID.

20 Q DID YOU CONDUCT THAT EXAMINATION?

21 A YES, I DID.

22 Q IN ORDER TO DO THAT EXAMINATION, DID
23 YOU TAKE ANY PRECAUTIONS TO MAKE SURE YOU DIDN'T
24 ALTER OR IN ANY WAY MODIFY THE HARD DRIVE OF THE

25 COMPUTER?

26 A YES, I HAVE.

27 Q COULD YOU PLEASE BRIEFLY EXPLAIN

28 THAT.

95

1 A WE USE ENCASE FORENSICS SOFTWARE,
2 WHICH IS SOFTWARE MADE BY GUIDANCE SOFTWARE AND
3 MADE SPECIFICALLY FOR FORENSICS WORK WHERE THE
4 SOFTWARE LOCKS THE EVIDENCE IN THE HARD DRIVE OR
5 THE IMMEDIATE AREA AND KEEPS IT FROM GETTING
6 ALTERED WHILE WE ARE EXAMINING IT.

7 WHAT THE SOFTWARE DOES IS WE MAKE AN
8 EXACT COPY OF THAT MEDIA, WHETHER IT'S A HARD DRIVE
9 OR ANY OTHER FLOPPY DEVICES, THEN WE DO THE
10 EXAMINATION ON THE COPY.

11 IT'S -- THE ORIGINAL DRIVE NEVER
12 GETS ALTERED IN ANY WAY.

13 Q THAT'S TO PROTECT THE ORIGINAL
14 EVIDENCE, CORRECT?

15 A YES.

16 Q NOW, WHEN YOU DID THAT EXAMINATION,
17 DID YOU DO ANYTHING TO CHECK TO MAKE SURE THAT THE
18 COMPUTER INTERNAL CLOCK AND CALENDAR WAS ACCURATE?

19 A YES, I HAVE.

20 Q AND WAS IT ACCURATE?

21 A YES.

22 Q NOW, DURING YOUR EXAMINATION, I AM

23 GOING TO HAND YOU A ONE-PAGE DOCUMENT.
24 DURING YOUR EXAMINATION, DID YOU
25 LOCATE THIS DOCUMENT ON THE HARD DRIVE OF THE
26 DEFENDANT'S COMPUTER?
27 A YES, I DID.
28 Q AND COULD YOU PLEASE TELL US WHAT

96

1 THAT DOCUMENT IS.
2 A IT IS A POEM ENTITLED "LAME-ASS
3 PRICK," BY DIZZIE, ZERO 1999.
4 MS. DO: YOUR HONOR, NEXT IN ORDER.
5 THE COURT: PEOPLE'S 77.
6
7 (PEOPLE'S EXHIBIT 77 WAS MARKED FOR
8 IDENTIFICATION: POEM.)
9
10 BY MS. DO:
11 Q WHERE EXACTLY DID YOU FIND THAT
12 POEM?
13 A THAT POEM WAS IN A -- ON THE HARD
14 DRIVE IN A FOLDER THAT -- THE EVIDENCE HARD DRIVE.
15 Q OKAY.
16 AND WERE YOU ABLE TO DETERMINE FROM
17 YOUR EXAMINATION WHAT THE FIRST DATE IS ASSOCIATED
18 WITH THAT POEM?
19 A THERE WERE TWO DATES ASSOCIATED WITH
20 IT. ONE DATE IS FEBRUARY 17TH OF THE YEAR 2000,

21 AND THE SECOND DATE IS APRIL 14TH OF THE YEAR 2000.

22 Q WHAT DOES FIRST DATE FEBRUARY 17TH
23 MEAN?

24 A THE COMPUTER REFERS TO IT AS A
25 WRITTEN DATE. THIS IS WHEN THE FILE WAS ORIGINALLY
26 WRITTEN.

27 Q OKAY.

28 WHAT DOES THE APRIL 14TH, 2000 DATE

97

1 MEAN?

2 A THAT WOULD BE THE LAST ACCESS DATE.

3 Q MEANING SOMEHOW RETRIEVED FROM THE
4 PARTICULAR LOCATION IT WAS SAVED IN?

5 A RETRIEVED, OPENED OR ANY WAY
6 OPENED --

7 Q OKAY. I AM SORRY.

8 A -- IN ANY MANNER.

9 Q DURING YOUR EXAMINATION, WHEN YOU
10 LOCATED -- LET ME REPHRASE THAT QUESTION.

11 DURING YOUR INVESTIGATION OF THE
12 COMPUTER, DID YOU DETERMINE WHERE THAT DOCUMENT
13 CAME FROM ORIGINALLY?

14 A FROM THE INTERNET.

15 Q OKAY.

16 AND DID YOU LOCATE ANY PARTICULAR
17 SITES ON THE INTERNET THAT WOULD HAVE THAT
18 DOCUMENT?

19 A THERE WERE SEVERAL THAT CONTAINED
20 THAT DOCUMENT.
21 Q WAS ONE OF THOSE CITES A SITE AT
22 WWW.TEXT FILES.BOKBAK/UPCLOSE?
23 A I BELIEVE SO.
24 Q WHAT KIND OF SITE IS THAT?
25 A IT IS WHAT WE REFER TO AS AN
26 UNDERGROUND SITE THAT CONTAINS NUMEROUS UNDERGROUND
27 AND HACKING AND TRACKING AND ALL SORTS OF DIFFERENT
28 FILES.

98

1 Q NOW, AT THAT PARTICULAR SITE, YOU
2 SAID THIS POEM APPEARS, RIGHT?
3 A YES.
4 Q AND THE POEM IS NOT AUTHORED BY
5 MR. DEMIRDJIAN; IS THAT CORRECT?
6 A I DON'T BELIEVE SO, THAT'S CORRECT.
7 Q NOW, WHEN YOU GO TO THAT PARTICULAR
8 SITE, ARE YOU ABLE TO THEN ACCESS THAT POEM AND
9 VIEW IT ON THE SCREEN?
10 A IF YOU CHOOSE TO DO SO, YES.
11 Q THAT OPTION IS THERE?
12 A YES.
13 Q IF THE PARTICULAR USERS CHOOSE TO
14 OPEN UP THE DOCUMENT, THEY CAN READ IT IN THAT
15 INSTANCE, ON THE COMPUTER SCREEN?
16 A YES.

17 Q JUST SO WE KNOW WHAT WE ARE TALKING
18 ABOUT, I AM GOING TO ASK THAT YOU READ THE POEM.
19 MR. MATHEWS: OBJECTION. IRRELEVANT.
20 THE COURT: LET ME SEE THE POEM AGAIN FOR
21 THE MOMENT.
22 MR. MATHEWS: IN FACT, YOUR HONOR, FOR THE
23 RECORD, I WOULD OBJECT TO THIS WHOLE LINE AS
24 IRRELEVANT.
25 THE COURT: OBJECTION OVERRULED ON
26 RELEVANCY GROUNDS.
27 MR. MATHEWS: AND HEARSAY AND SPECULATION.
28 MS. DO: MAY HE READ THE POEM?

99

1 THE COURT: HE CAN READ THE POEM.
2 THE WITNESS: POEM ENTITLED LAME-ASS PRICK.
3 "YOU FUCKING PIECE OF CRAP.
4 YOU THINK YOU'RE ALL THAT, 'CUS YOU
5 LISTEN TO RAP?
6 YOU'RE NOTHING BUT A FUCKING LOSER,
7 JUST ANOTHER DRUNK OLD BOOZER.
8 NOW LET ME TELL YOU SOMETHING, MY
9 FRIEND. THE GAME IS OVER, THIS IS THE END.
10 I GOT MY GUN HERE, IT'S AN AK-47.
11 YUP, THE SAME ONE I USED TO ROB THE 7-ELEVEN.
12 I'LL BLAST OFF YOUR LITTLE WRINKLED
13 NUTS, THEN YOU'LL PROBABLY BARF UP YOUR GUTS.
14 I'LL RIP OFF YOUR COCK, AND THEN

15 I'LL GET A BIG-ASS ROCK.
16 AND I'LL DROP IT ON YOUR HEAD, AND
17 YOU'LL BE SHAKING WITH DREAD;
18 THINKING THAT YOU SHOULD HAVE NEVER
19 FUCKED WITH ME, YOU MOTHERFUCKING WANNABE.
20 OH, YES, YOU'RE DEAD NOW, SO YOU
21 DON'T GET TO FUCK THE COW.
22 OH, WELL, I GUESS THAT JUST MEANS
23 THERE IS MORE MILK FOR ME. WEEE."
24 Q THAT PARTICULAR SITE WHERE THIS POEM
25 CAME FROM, DID YOU FIND ANY DOCUMENT AT THAT SITE
26 THAT WERE IN THE PARTICULAR FILE YOU FOUND THE
27 POEM?
28 A YES.

100

1 MS. DO: NOW, YOUR HONOR, AT THIS TIME I
2 HAVE THREE PHOTOGRAPHS, DEPICTING A MAN CHOKING A
3 YOUNG BOY.
4 MAY I HAVE THEM MARKED NEXT IN ORDER
5 INDIVIDUALLY?
6 THE COURT: 79 -- 78, 79, 80.
7 MR. MATHEWS: FOR THE RECORD, WE OBJECT AS
8 IRRELEVANT IN THIS CASE.
9 THE COURT: OVERRULED.
10
11 (PEOPLE'S EXHIBIT 78-80 WAS MARKED
12 FOR IDENTIFICATION: PHOTOS.)

13

14 BY MS. DO:

15 Q I AM SHOWING YOU THREE PHOTOGRAPHS
16 MARKED 78, 79 AND 80.

17 DID YOU ALSO FIND A POEM ON THE
18 COMPUTER?

19 A YES, I DID.

20 Q THAT WAS THE HARD DRIVE?

21 A YES.

22 Q AND WAS THAT THE SAME FILE AS THE
23 POEM?

24 A IT WAS IN THE SAME FOLDER IN A
25 DIFFERENT FILE.

26 Q OKAY.

27 FROM YOUR EXAMINATION, COULD YOU
28 TELL US WHAT THE FIRST DATE IS WHEN THIS PARTICULAR

101

1 DOCUMENT WAS FOUND IN THE COMPUTER?

2 A IF YOU ARE REFERRING TO THE WRITTEN
3 DATE, THAT'S MARCH 11TH THE YEAR 2000.

4 Q WAS THERE A SUBSEQUENT DATE TO THAT?

5 A THAT LAST ACCESS DATE MAY 4TH, YEAR
6 2000.

7 Q AGAIN, THAT MAY 4TH ACCESS DATE,
8 THAT MEANS THAT'S A DATE ON WHICH THE PHOTOS -- LET
9 ME BACK UP.

10 THE MARCH 11TH DATE, IS THAT THE

11 DATE WHERE THE PHOTOS COULD HAVE BEEN SAVED TO THE
12 HARD DRIVE?

13 MR. MATHEWS: OBJECTION. CALLS FOR
14 SPECULATION.

15 THE COURT: SUSTAINED AS TO THE PHRASING OF
16 THE QUESTION.

17 BY MS. DO:

18 Q COULD YOU EXPLAIN WHAT THE
19 MARCH 11TH DATE MEANS?

20 A MARCH 11TH COULD HAVE BEEN THE
21 CREATION DATE OF THIS FILE WHEN IT'S CREATED OR
22 WHATEVER IT WAS CREATED.

23 Q OKAY.

24 AND ONCE IT'S CREATED, IT IS SAVED
25 TO THE HARD DRIVE IF THE USER CHOOSES TO DO SO?

26 A YES.

27 Q THE MAY 4TH DATE, IS THAT A DATE
28 UPON ACCESSING THE FILE THAT HAS BEEN -- I AM

102

1 SORRY. I'LL REPHRASE IT.

2 MAY 4TH DATE, IS THAT A DATE WHERE
3 THE CHOKING PHOTOS WOULD THEN BE ACCESSED ONCE
4 SAVED?

5 MR. MATHEWS: OBJECTION. VAGUE AS PHRASED.

6 THE COURT: DID YOU UNDERSTAND THAT
7 QUESTION, DETECTIVE ZAHREDDINE?

8 THE WITNESS: NO.

9 MS. DO: LET ME TRY AGAIN. THAT'S FINE.

10 Q ON MAY 4TH, THAT DATE, WHAT DOES
11 THAT MEAN?

12 A MAY 4TH IS THE LAST DATE THIS FILE
13 WAS ACCESSED WHEN IT WAS OPENED OR MANIPULATED IN
14 ANY MANNER.

15 Q THE USER IS RETRIEVING IT, CORRECT?

16 A INCLUDES RETRIEVING IT, YES.

17 Q WAS THERE ANOTHER DATE ASSOCIATED
18 WITH THESE CHOKING PHOTOS?

19 A THE -- ACTUALLY, THE FILE THAT THESE
20 PHOTOS ARE INCLUDED IN, WHICH IS THE CHOKE ZIP
21 FILE, WAS ALSO FOUND IN THE DOWNLOADED FOLDER OF
22 THE AOL FOLDER ON JULY 23RD THE YEAR 2000.

23 Q THAT WOULD BE SUNDAY, JULY THE 23RD,
24 CORRECT?

25 A I DON'T KNOW WHAT DAY OF THE WEEK,
26 BUT JULY 23RD.

27 Q OKAY.

28 UPON YOUR EXAMINATION, DID YOU FIND

103

1 THAT THE CHOKE PHOTOS WERE DOWNLOADED ON THAT
2 PARTICULAR DATE?

3 A APPEARED THEY WERE DOWNLOADED ON
4 THAT DATE.

5 MS. DO: YOUR HONOR, I HAVE A TWO-PAGE

6 DOCUMENT, INTERNET HISTORY, PEOPLE'S NEXT IN ORDER.

7 THE COURT: PEOPLE'S 81.

8

9 (PEOPLE'S EXHIBIT 81 WAS MARKED FOR
10 IDENTIFICATION: INTERNET HISTORY.)

11

12 BY MS. DO:

13 Q DO YOU RECOGNIZE THAT DOCUMENT?

14 A YES.

15 Q WHAT IS IT?

16 MR. MATHEWS: OBJECTION. IRRELEVANT.

17 THE COURT: OVERRULED.

18 THE WITNESS: THIS IS A PRINTOUT OF THE
19 NICEGUYOG FILE FROM AOL, THE AOL FOLDER.

20 BY MS. DO:

21 Q IS NICEGUYOG A USER NAME?

22 A YES.

23 Q LET ME ASK YOU, FROM THOSE DOCUMENTS
24 WE JUST MARKED -- EXCUSE ME -- ARE YOU ABLE TO TELL
25 THE TIME THAT THE CHOKE PHOTOS WERE DOWNLOADED ON
26 JULY THE 23RD?

27 MR. MATHEWS: OBJECTION. THAT MISSTATES
28 HIS TESTIMONY.

104

1 THE COURT: OVERRULED.

2 YOU CAN CLEAR IT UP IN YOUR ANSWER.

3 MR. MATHEWS: THAT ASSUMES SOMETHING WHICH

4 WAS INCORRECT IN THE PREVIOUS TESTIMONY.

5 THE WITNESS: WELL, THE DATE THIS FILE WAS
6 AMENDED MEANS IT'S CHANGED, IS 1736 HOURS. EXACTLY
7 WHAT TIME IT WAS DOWNLOADED, I CAN'T TELL YOU.

8 BY MS. DO:

9 Q BUT YOU KNOW IT WAS DOWNLOADED ON
10 JULY THE 23RD?

11 A YES.

12 Q WHAT DATE -- I AM SORRY. WHAT WAS
13 THE TIME?

14 A 1736:40.

15 Q WHICH WOULD BE 5:36 P.M.?

16 A YES.

17 Q AND THAT'S A TIME IN WHICH THE FILE
18 WAS AMENDED?

19 A WAS CHANGED, WAS AMENDED, APPENDED.

20 Q WHAT DOES THAT MEAN?

21 A THAT MEANS THIS IS WHEN YOU DO
22 SOMETHING NEW TO A FILE, THEN ALL THESE ADMISSIONS
23 ARE ADDED TO IT.

24 Q AT SOME POINT DURING YOUR
25 INVESTIGATION, DID YOU GET A SEARCH WARRANT TO
26 OBTAIN THE USER NAMES ASSOCIATED WITH MICHAEL
27 DEMIRDJIAN AND AOL?

28 A YES.

1 MS. DO: OKAY.

2 YOUR HONOR, I HAVE A -- EXCUSE ME --

3

4 (PAUSE IN THE PROCEEDINGS.)

5

6 MS. DO: -- MULTIPLE PAGE DOCUMENT

7 REPRESENTING A SEARCH WARRANT AND ITS RETURN.

8 MAY I HAVE IT MARKED NEXT IN ORDER?

9 THE COURT: 82.

10

11 (People's Exhibit 82 was marked for

12 IDENTIFICATION: COPY/SEARCH

13 WARRANT.)

14

15 BY MS. DO:

16 Q IS 82 A COPY OF A SEARCH WARRANT

17 THAT YOU EXECUTED ON THE AOL SERVICE FROM MICHAEL

18 DEMIRDJIAN'S COMPUTER?

19 A YES.

20 Q COULD YOU PLEASE TELL THIS JURY HOW

21 MANY USER NAMES YOU FOUND ASSOCIATED WITH MICHAEL

22 DEMIRDJIAN?

23 MR. MATHEWS: OBJECTION. VAGUE AND

24 AMBIGUOUS AS TO THE PHRASE "ASSOCIATED."

25 THE COURT: SUSTAINED.

26 REPHRASE THAT QUESTION.

27 BY MS. DO:

28 Q WERE YOU ABLE TO DETERMINE FROM THE

1 SEARCH WARRANT RETURN HOW MANY USER NAMES WAS ON
2 THE ACCOUNT FROM -- FOR MICHAEL DEMIRDJIAN -- WAS
3 ON THE AOL ACCOUNT FOR MICHAEL DEMIRDJIAN?

4 A JUST READING THE DOCUMENT NOW, I CAN
5 SEE OVER 11 MAYBE.

6 Q AND WAS NICEGUYOG ONE OF THEM?

7 A YES.

8 Q WAS LILWEEZY ONE OF THEM?

9 A IF I CAN LOOK AT THE DOCUMENT.

10 Q SURE.

11

12 (PAUSE IN THE PROCEEDINGS.)

13

14 BY MS. DO:

15 Q WHAT WAS HRAYR?

16 A YES.

17 Q WHAT WERE SOME OF THE OTHER ONES?

18 A STR8NIGGAS, STR8THUGLIFE,
19 SOLDIEROF18THST, ABCLOC, FUCAREAN, MYSTIKAL2PAC,
20 DOGGIEDOGGIEDOG, 622453, NOSCUMBOYISWHITE. THAT'S
21 SOME OF THEM AND NICEGUYOG.

22 THE PROSECUTION: THANK YOU.

23 NO FURTHER QUESTIONS.

24 THE COURT: ALL RIGHT.

25 WHY DON'T WE BREAK NOW, PICK UP YOUR
26 CROSS-EXAMINATION IN THE MORNING, MR. MATHEWS.

27 MR. MATHEWS: WHATEVER YOU WANT.

28

THE COURT: LADIES AND GENTLEMEN, I TOLD

107

1 YOU PEOPLE WERE GOING TO REST TODAY. WE ARE VERY
2 CLOSE TO RESTING. LOOKS LIKE TOMORROW MORNING THEY
3 MAY ACTUALLY REST.

4 PLEASE BEAR IN MIND NOT TO FORM OR
5 EXPRESS AN OPINION.

6 SEE YOU BACK TOMORROW MORNING AT
7 9:30. WE SHOULD BE ABLE TO START PROMPTLY AT 9:30.

8

9 (REQUESTED PROCEEDINGS CONTINUED TO
10 THURSDAY, APRIL 5, 2001.)

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25

26
27
28

108

1 CASE NUMBER: GA043471
2 CASE NAME: PEOPLE VS. MICHAEL DEMIRDJIAN
3 PASADENA, CALIFORNIA THURSDAY, APRIL 5, 2001
4 DEPARTMENT NE "J" HON. JOSEPH F. DE VANON, JUDGE
5 REPORTER: SHARON P. BOYER, CSR #4329
6 TIME: A.M. SESSION
7 APPEARANCES:

8 PRESENT IN COURT IS THE
9 DEFENDANT, MICHAEL DEMIRDJIAN,
10 REPRESENTED BY CHARLES MATHEWS,
11 ATTORNEY AT LAW;
12 AND THE PEOPLE REPRESENTED BY
13 STEVEN BARSHOP AND TRUC DO,
14 DEPUTIES DISTRICT ATTORNEY OF THE
15 STATE OF CALIFORNIA:

16
17 (THE FOLLOWING PROCEEDINGS WERE
18 HELD IN OPEN COURT OUTSIDE THE
19 PRESENCE OF THE JURY:)

20
21 THE COURT: BACK ON RECORD IN THE MATTER OF
22 PEOPLE VERSUS DEMIRDJIAN. HE IS PRESENT WITH
23 COUNSEL; PEOPLE ARE REPRESENTED. JURORS ARE IN THE

24 HALLWAY.

25 I THINK WE ARE READY TO START THE
26 CROSS OF DETECTIVE ZAHREDDINE.

27 MR. MATHEWS: YES, SIR.

28 MR. BARSHOP: I WOULD SAY HE IS OUR LAST

109

1 WITNESS.

2 DOES THE COURT WANT TO RULE ON
3 EXHIBITS AFTERWARD?

4 THE COURT: PROBABLY WAIT RATHER THAN TAKE
5 TIME FROM THE JURY.

6 MR. MATHEWS: THERE MAY BE A COUPLE GAPS.
7 WE MAY HAVE A GAPS IN OUR WITNESSES.

8 THE COURT: WE WILL WORK EXHIBITS IN.
9 THERE WILL BE A NUMBER OF THINGS TO DISCUSS. I
10 DON'T THINK IT IS A PROBLEM BECAUSE SOME CONFUSION
11 IN MARKING THE EXHIBITS.

12 LET'S BRING OUR JURORS IN.

13

14 (THE FOLLOWING PROCEEDINGS WERE
15 HELD IN OPEN COURT IN THE PRESENCE
16 OF THE JURORS:)

17

18 THE COURT: GOOD MORNING.

19 WE ARE BACK ON THE RECORD IN THE
20 TRIAL MATTER. WE HAVE BEEN REJOINED BY OUR JURORS.

21 DETECTIVE ZAHREDDINE, RETAKE THE

22 WITNESS STAND.

23 REMIND YOU, YOU ARE STILL UNDER

24 OATH.

25 AS SOON AS YOU ARE READY,

26 MR. MATHEWS, YOU CAN BEGIN YOUR CROSS-EXAMINATION.

27 MR. MATHEWS: THANK YOU, YOUR HONOR.

28

110

1 BOB ZAHREDDINE,

2 CALLED AS A WITNESS BY THE PEOPLE, HAVING BEEN DULY

3 SWORN, TOOK THE WITNESS STAND AND TESTIFIED AS

4 FOLLOWS:

5

6 CROSS-EXAMINATION

7

8 BY MR. MATHEWS:

9 Q DETECTIVE ZAHREDDINE, IN TERMS OF

10 YOUR WORK, WHAT IS THE MOST SIGNIFICANT WORK THAT

11 YOU DO FOR THE GLENDALE POLICE DEPARTMENT?

12 A I AM AN INVESTIGATOR IN THE

13 BUNCO/FORGERY DETAIL. I INVESTIGATE ALL FORGERY

14 AND COUNTERFEITING OPERATIONS. I AM ALSO THE HEAD

15 PROGRAMMER FOR THE COMPUTER FORENSIC UNIT.

16 Q HOW MANY PEOPLE ARE IN THE COMPUTER

17 FORENSIC UNIT?

18 A WE HAVE THREE PEOPLE SO FAR.

19 Q WHAT ARE THE JOBS OF THOSE THREE

20 PEOPLE?

21 A JOBS --

22 Q WHO DOES WHAT? YOU ARE THE HEAD OF
23 IT, RIGHT?

24 A WE ALL DO THE SAME THING.

25 Q ALL RIGHT.

26 NOW, IN THE BULK OF YOUR WORK YOU --
27 I HEARD YOUR RESUME OF WHAT YOU DO. IS THE BULK OF
28 IT RELATED TO THINGS LIKE CHILD PORNOGRAPHY?

111

1 A THAT'S THE MOST PREVALENT CRIME ON
2 THE COMPUTER.

3 Q TO WHAT EXTENT, IF ANY, HAVE YOU HAD
4 ANY TRAINING ON WHAT CHILDREN DOWNLOAD FROM THE
5 INTERNET?

6 A BASICALLY, JUST ATTENDING SEMINARS
7 WE HAVE DONE WITH OTHER INVESTIGATORS AND SEMINARS
8 AND CLASSES PUT ON BY MAYBE U.S CUSTOMS AND OTHER
9 AGENCIES. THAT'S ABOUT IT.

10 Q IS THERE ANY TYPE OF MATERIAL THAT
11 CHILDREN TYPICALLY DOWNLOAD FROM THE INTERNET?

12 A USUALLY MUSIC, FREE GAMES, PICTURES.
13 STUFF LIKE THAT.

14 Q NOW, IN THIS CASE, YOU SAID YOU WENT
15 OVER AND YOU EXECUTED A SEARCH WARRANT TO GET A
16 COMPUTER AT THE DEMIRDJIAN HOUSE; IS THAT RIGHT?

15 PHYSICALLY TAKING THE MACHINE OUT?

16 A AT THE HOME? YES.

17 Q IT WAS BOOKED IN JULY --

18 MS. DO: OBJECTION. MISSTATES THE
19 EVIDENCE.

20 BY MR. MATHEWS:

21 Q I AM SORRY, THE 28TH.

22 THE COURT: OVERRULED. THE QUESTION IS
23 FINE.

24 BY MR. MATHEWS:

25 Q IT WAS BOOKED INTO EVIDENCE ON THE
26 28TH. WHEN DID YOU AGAIN DO ANY WORK ON THIS
27 COMPUTER?

28 A I BELIEVE THE FIRST DAY, THE FIRST

113

1 TIME I ACQUIRED THE HARD DRIVE ON THAT COMPUTER WAS
2 IN AUGUST, COULD HAVE BEEN AUGUST 8TH, I AM NOT
3 SURE OF THE EXACT DATE, OF THE YEAR 2000.

4 Q WHEN YOU SAY YOU ACQUIRED THE HARD
5 DRIVE, WHAT DO YOU MEAN BY THAT?

6 A THAT MEANS WE MADE A COPY OF THE
7 HARD DRIVE ONTO OUR LAB UNIT.

8 Q AND WHEN YOU SAY YOU MADE A COPY OF
9 THE HARD DRIVE, I GATHER THE HARD DRIVE IS THE MAIN
10 MEMORY COMPONENT OF THE COMPUTER, IN CASE SOMEBODY
11 DOESN'T KNOW WHAT THAT IS.

12 A THE MAIN MEDIA STORAGE, MEDIA DEVICE

13 ON THE COMPUTER.

14 Q WHEN YOU SAY STORAGE MEDIA, A
15 COMPUTER WOULD STORE WHATEVER IS ON THAT COMPUTER?

16 A THAT'S CORRECT.

17 Q NOW, WAS THIS A COMPUTER THAT HAD
18 VERY MINIMAL MEMORY CAPACITY OR A COMPUTER THAT HAD
19 LARGE MEMORY CAPACITY? HOW WOULD YOU EVALUATE THE
20 MEMORY CAPACITY OF THE COMPUTER?

21 A IT HAD TYPICAL CAPACITY, NOTHING
22 LARGE OR UNDER.

23 Q HOW IS COMPUTER CAPACITY MEASURED?

24 A I DON'T UNDERSTAND YOUR QUESTION.

25 Q I SEE ADS ON TV, THEY SAY THIS
26 COMPUTER HAS SO MANY GIGABYTES OR MEGABITS OR STUFF
27 LIKE THAT. WHAT DOES THAT MEAN, FIRST OF ALL?

28 A THERE ARE TWO TYPES OF THINGS YOU

114

1 ARE TALKING ABOUT HERE. WHEN YOU ARE SAYING -- ARE
2 YOU TALKING ABOUT STORAGE CAPACITY OR MEMORY
3 CAPACITY.

4 Q WHY DON'T YOU TELL US WHAT THE
5 DIFFERENCE IS.

6 A OKAY.

7 MEMORY CAPACITY IS WHAT WE CALL
8 BASICALLY VULNERABLE MEMORY. IT IS USUALLY RAM.
9 ALL IT DOES IS MEMORY THAT THE COMPUTER USES WHEN
10 IT IS ON AND IT IS OPERATING, SWAPS INFORMATION IN

11 AND OUT OF THAT MEMORY.

12 ONCE A COMPUTER IS OFF, EVERYTHING
13 IN THE RAM IS ACTUALLY DELETED IN STORAGE CAPACITY.
14 THAT WOULD BE IN THE HARD DRIVE OR FLOPPY DISK.

15 IN THIS CASE, IT WOULD BE A HARD
16 DRIVE. IT CAN RANGE STARTED AT ONE MEGABYTE. IN
17 THE OLD DAYS THEY ARE UP TO A HUNDRED GIGABYTE. A
18 GIGABYTE IS A MILLION BYTES. I MEAN, THAT'S
19 BASICALLY WHAT THE STORAGE IS.

20 SO THE STORAGE IN A HARD DRIVE OR
21 FLOPPY DRIVE OR ANY EXTERNAL MEDIA SOURCE IS THERE,
22 I WOULDN'T SAY FOREVER, BUT I WOULD CALL PERMANENT,
23 OR WHEREAS IN MEMORY PER SE, RAM, IS NOT PERMANENT.
24 IT IS OFF WHEN THE COMPUTER IS OFF.

25 Q IS RAM 3 INITIALS R-A-M?

26 A YES.

27 Q WHAT DOES THE STAND FOR?

28 A RANDOM ACCESS MEMORY.

115

1 Q THE OTHER KIND OF MEMORY RAM, R-O-M?

2 A YES.

3 Q WHAT DOES IT STAND FOR?

4 A READ ONLY MEMORY.

5 Q IT IS THE RAM THAT ACTUALLY
6 PERMANENTLY STORES DATA UNTIL IT'S DELETED IN THE
7 COMPUTER?

8 A RAM IS ANOTHER MEMORY, ON BOARD

9 MEMORY, THAT THE COMPUTER USES. IT STORES ITS
10 OPERATING SYSTEM AND OTHER SUBOPERATING SYSTEM
11 UTILITIES, IF YOU WANT TO CALL IT THAT WAY.

12 Q WHETHER IS IT, YOU CALL THE THING
13 THAT PERMANENTLY STORES STUFF, LET'S SAY A COMPUTER
14 USERS WANTS TO KEEP IN HIS COMPUTER SUCH AS A WORD
15 PERFECT PROGRAM OR SOMETHING LIKE THAT.

16 A EITHER A HARD DRIVE OR A FLOPPY DISK
17 OR ZIP DISKS.

18 Q WHAT WAS THE MEMORY CAPACITY ON THE
19 COMPUTER YOU TOOK FROM THE --

20 A I WANT TO REMEMBER IT WAS 4
21 GIGABYTES.

22 Q FOUR GIGABYTES, THAT'S -- HOW MUCH
23 IS IT? 4 MILLION BYTES?

24 A YES.

25 Q IS THAT WHAT YOU WOULD CONSIDER TO
26 BE RELATIVELY LARGE MEMORY?

27 A MAYBE A YEAR OR TWO AGO, NOT
28 ANYMORE. IT IS VERY LOW NOW.

116

1 Q OKAY.

2 NOW, OF THE MEMORY CAPACITY OF TWO
3 GIGABYTES, DID YOU DETERMINE HOW MUCH OF THAT
4 CAPACITY ON THE COMPUTER HAD BEEN USED?

5 A A LITTLE OVER THREE.

6 Q THREE?

7 A YES.

8 Q THREE-FOURTHS, APPROXIMATELY, OF THE
9 GIGABYTES HAD BEEN USED?

10 A YES.

11 Q NOW, YOU HAVE SAID THAT EACH
12 GIGABYTE IS THE EQUIVALENT OF A MILLION BYTES OF
13 MEMORY?

14 A YES.

15 Q COUNSEL SHOWED YOU THIS POEM, OR YOU
16 SHOWED US THIS POEM YESTERDAY YOU FOUND WHICH WAS
17 LAME-ASS PRICK BY DIZZIE?

18 A YES.

19 Q HOW MANY MEGABYTES DID THAT TAKE UP
20 ON THE SPACE, IS THAT A LARGE PART OF THE COMPUTER
21 MEMORY?

22 A VERY MINISCULE.

23 Q HOW MINISCULE?

24 A I CAN'T REMEMBER, BUT IT WOULD BE
25 SOMETHING IN THE ORDER OF LESS THAN 10 TO A
26 THOUSAND, WHAT WE CALL 10 OR MAYBE 12 K, IF THAT.
27 I AM NOT SURE HOW MUCH SPACE IT TOOK.

28 Q THESE THREE PHOTOS THAT THEY SHOWED

117

1 OF THE TOTAL CAPACITY OF THAT COMPUTER, WHAT
2 FRACTION OR PERCENTAGE WOULD YOU SAY THE THREE
3 PHOTOS REPRESENT?

4 A ALSO, VERY MINISCULE.

5 Q SO, OUT OF THE ENTIRE 3 GIGABYTES,
6 OR THREE MILLION BYTES OF USED SPACE, YOU SEARCHED
7 ALL OF THAT, RIGHT?

8 A YES.

9 Q THE ONLY THING YOU COULD FIND THAT
10 YOU THOUGHT HAD SOME EVIDENTIARY VALUE, I GUESS,
11 WAS THE POEM AND THE THREE PHOTOS; WAS THAT RIGHT?

12 A I PRESENTED DETECTIVE SMITH WITH
13 NUMEROUS ITEMS, THEN HE DECIDED WHICH ONES ARE
14 EVIDENTIARY VALUE OR NOT.

15 Q WHAT TYPES OF ITEMS DID YOU PRESENT
16 TO DETECTIVE SMITH?

17 A THERE WAS NUMEROUS PROGRAMS IN THERE
18 ABOUT HACKING A PROGRAM. VIRE PROGRAMS, NUMEROUS
19 ITEMS OF INTERNET SEARCHES AND SERVER INTERNET WEB
20 PAGES DOWNLOADED ON THE COMPUTER, JUST THOSE SORT
21 OF ITEMS.

22 Q DID YOU FIND MUSIC ITEMS, THE STUFF
23 YOU GET FROM NAPSTIR?

24 A YES.

25 Q RAP SONGS?

26 A YES.

27 Q SOME OF THOSE RAP SONGS HAVE RATHER
28 NASTY, VIOLENT LYRICS, DON'T THEY?

118

1 A THE ONES ON HIS COMPUTER, I DIDN'T
2 LISTEN HEAVILY TO. THEY HAVE BAD LYRICS.

3 Q DID YOU CHECK TO SEE IF ANY RAP
4 SONGS SAID ANYTHING ABOUT ROCKS OR KILLING OR
5 ANYTHING LIKE THAT?

6 A NO, I DID NOT LISTEN TO THEM.

7 Q THIS PARTICULAR POEM BY DIZZIE, DID
8 YOU CHECK TO SEE IF IT WAS AVAILABLE FREELY ON THE
9 INTERNET IN ANY WAY?

10 A YES, I FOUND IT AT, I BELIEVE, AT
11 LEAST THREE SITES.

12 Q WHEN YOU SAY YOU FOUND IT AT THREE
13 SITES, HOW DID YOU LOCATE IT?

14 A WE DID A GENERAL SEARCH UNDER THE
15 WORD DIZZIE IN 1999, AND THE WORD DIZZIE 2000.

16 Q JUST POPPED UP ON THREE SITES?

17 A YES.

18 Q DID YOU EVER MAKE ANY EFFORT TO TALK
19 TO DIZZIE?

20 A I WAS UNABLE TO LOCATE HIM.

21 Q BY THE WAY, WAS THIS THE ONLY WORK
22 BY DIZZIE THAT WAS IN THAT COMPUTER?

23 A NO, THERE WERE OTHER WORKS.

24 Q AND DO YOU KNOW HOW THEY CAME THERE?
25 DID THEY COME BY THEMSELVES, LIKE SOMEBODY WENT AND
26 FOUND THIS POEM OR COME AS PART OF A PACKAGE?

27 A IT APPEARED IT CAME AS PART OF A
28 PACKAGE.

1 Q IN FACT, DETECTIVE, IT IS TRUE,
2 ISN'T IT, WHEN YOU WENT LOOKING IN THIS COMPUTER,
3 YOU FOUND A FILE THAT APPEARED TO HAVE BEEN
4 DOWNLOADED ALL THE SAME DAY AND A WHOLE BUNCH OF
5 THINGS CAME DOWN AT ONCE?

6 A YES.

7 Q THESE THINGS, AS I RECALL, ARE WHAT
8 ARE CALLED ZIP FILES?

9 A YES.

10 Q WOULD YOU TELL THE JURY WHAT A ZIP
11 FILE IS.

12 A A ZIP FILE IS ANOTHER WORD FOR AN
13 COMPRESSED FILE ON THE INTERNET. IN ORDER TO SAVE
14 SPACE FOR THE SERVERS, AND THEN TO SAVE TIME IN THE
15 TRANSPORTATION AS YOU ARE DOWNLOADING OR UPLOADING
16 ON THE INTERNET.

17 WHAT THEY DO TO A FILE IS COMPRESS
18 IT TO A SMALLER FILE SO IT COMES DOWN TO US FASTER.
19 IT IS ON THE SERVER OF THE WEB FILE, IT'S -- USING
20 NUMEROUS UTILITIES FREE ON THE INTERNET.

21 ONCE YOU DOWNLOAD IT ONTO YOUR HARD
22 DRIVE, OR YOUR COMPUTER AT HOME, THEN YOU CAN UNZIP
23 IT, WHICH MEANS YOU UNCOMPRESS IT AND YOU CAN LOOK
24 AT THE FILE IN ITS ORIGINAL FORMAT.

25 Q NOW, THESE ITEMS THAT WERE
26 DOWNLOADED, HOW MANY WERE DOWNLOADED ALL AT ONCE
27 BESIDES THIS POEM CALLED LAME-ASS PRICK?

28 A I CAN'T REMEMBER. I WOULD HAVE TO

1 LOOK AT THE SHEET, BUT NUMEROUS.

2 Q WHEN YOU SAY "NUMEROUS," MORE THAN
3 20?

4 A I AM NOT SURE, BUT PROBABLY UP TO
5 20.

6 Q BY THE PUSH OF A BUTTON OR A CLICK
7 OF A MOUSE, IF SOMEBODY WERE LOOKING AT THAT
8 PARTICULAR FILE, SUDDENLY DOWNLOAD THINGS IN A
9 SINGULAR FORMAT?

10 A I BELIEVE THE FILES WERE ALL
11 TOGETHER. THEY APPEARED TO HAVE BEEN DOWNLOADED
12 ALL TOGETHER. WHAT THEY ARE, I THINK THEY ARE
13 DOWNLOADED THE SAME DAY, ONE SUCCESSIVELY DONE
14 AFTER THE OTHER. I DON'T BELIEVE THEY ALL CAME
15 DOWN WITH ONE FILE AND EXPANDED TO DIFFERENT
16 FOLDERS.

17 IN EACH FOLDER THAT WAS DOWNLOADED,
18 THERE WERE NUMEROUS ITEMS, IF THAT'S WHAT YOU ARE
19 ASKING.

20 Q THAT'S WHAT I WAS ASKING. BY THE
21 CLICK OF A MOUSE, ONCE, TWICE, OR HOW MANY TIMES, A
22 WHOLE BUNCH OF FOLDERS WITHIN THOSE FOLDERS THERE
23 IS A HOLE BUNCH OF OTHER ITEMS?

24 A YES.

25 Q IN OUT --

26 A ON HIS PARTICULAR HARD DRIVE, YES.

27 Q WHEN YOU COPIED THEM, YOU COPIED
28 THEM TO YOUR HARD DRIVE OR TO SOME OTHER COMPUTER;

121

1 IS THAT RIGHT?

2 A YES.

3 Q WHEN YOU COPIED THEM, WERE THEY
4 STILL IN ZIP FORMAT?

5 A WHEN WE COPIED THEM, THEY WERE
6 EXACTLY IN THE SAME FORMAT, BUT ON THE HARD DRIVE.

7 Q WHAT I AM ASKING YOU, AT THE TIME
8 YOU GOT THEM ONTO YOUR COMPUTER, WERE THEY IN ZIP
9 FORMAT?

10 A THEY WERE UNZIPPED.

11 Q WHEN YOU LOOK AT THEM ON YOUR
12 COMPUTER, YOU CAN SEE THEM, RIGHT?

13 A YES.

14 Q WHAT DID YOU SEE? WERE YOU ABLE TO
15 READ THE POEM WITHOUT DOING ANYTHING TO IT BECAUSE
16 IT WAS THEN UNZIPPED?

17 A YES.

18 Q BUT UNTIL SOMEBODY UNZIPPED IT, THEY
19 WOULDN'T KNOW WHAT THE POEM WAS; IS THAT CORRECT?

20 A THAT'S CORRECT.

21 Q YOU SAID YOU HAD, LIKE, 20, MAYBE
22 FOLDERS THAT WERE DOWNLOADED AND THEN WITHIN THOSE
23 FOLDERS THERE WERE OTHER ITEMS WITHIN THOSE, RIGHT?

24 A YES.

25 Q SO, FOR SOMEBODY TO ACTUALLY HAVE
26 SEEN ANY ONE OF THOSE ITEMS, THEY WOULD
27 THEORETICALLY HAVE TO OPEN EACH FOLDER, UNZIP IT,
28 THEN UNZIP THE ONES THAT WERE WITHIN THAT, RIGHT?

122

1 A ONCE YOU UNZIPPED THE MAIN FOLDER,
2 ALL ITS CONTENTS ARE UNZIPPED.

3 Q IF YOU UNZIP FOLDER NUMBER ONE,
4 THEN, YOU CAN LOOK AT THE CONTENTS OF THAT FOLDER?

5 A YES.

6 Q THEN YOU HAVE TO GO TO FOLDER NUMBER
7 2 AND UNZIP IT AND SEE THE CONTENTS?

8 A YES.

9 Q AND SO FORTH, DOWN THE LINE, THROUGH
10 ALL 20?

11 A YES.

12 Q IN TERMS OF THE -- SPEAKING OF THIS
13 PARTICULAR POEM, I THINK YOU SAID IT WAS DOWNLOADED
14 IN FEBRUARY?

15 A I BELIEVE IT WAS IN APRIL. FOR THE
16 LAST ACCESS DATE, IT APPEARED TO HAVE BEEN APRIL.

17 Q WHEN YOU SAY "LAST ACCESS DATE,"
18 ACCESS DATE VERSUS DOWNLOADED, ARE THEY DIFFERENT
19 THINGS?

20 A WHEN YOU ARE GETTING THINGS FROM THE
21 INTERNET IN FILES LIKE THAT, IT IS HARD TO DECIPHER
22 THE LAST DATE YOU DOWNLOADED IT, OR THE DATE YOU

23 OPENED IT.

24 Q I THOUGHT I HEARD YOU SAY ABOUT THAT
25 POEM SOMETHING ABOUT A FEBRUARY DATE?

26 A IT HAD AN ORIGINAL WRITTEN DATE AS
27 FEBRUARY 17TH.

28 Q WOULD YOU TELL THE JURY WHAT THAT

123

1 MEANS, THE ORIGINAL WRITTEN DATE, SOMETHING ON THE
2 DEMIRDJIAN COMPUTER?

3 A IT COULD MEAN TWO THINGS: IT COULD
4 MEAN THAT THE ORIGINAL DATE WHEN YOU DOWNLOADED
5 THAT FOLDER FROM THE INTERNET, YOU DOWNLOADED
6 BRINGING WITH IT THE ORIGIN DATE AS IT APPEARED ON
7 THE INTERNET.

8 Q YES.

9 A OR COULD HAVE BEEN WHEN YOU
10 DOWNLOADED IT, YOUR COMPUTER CREATED AN ORIGINAL
11 DATE IT BECAME ON THAT COMPUTER. IT COULD HAVE
12 BEEN TWO THINGS.

13 Q CAN YOU SAY WITH ANY CERTAINTY WHICH
14 ONE IT WAS?

15 A NO.

16 Q HE COULD HAVE DOWNLOADED THE WHOLE
17 BATCH OF 20 IN FEBRUARY?

18 A YES.

19 Q MAYBE NOT LOOKED AT THEM UNTIL

20 APRIL?

21 A YES.

22 Q THEN AND ONLY THEN, IN APRIL OPENED
23 THEM; IS THAT RIGHT?

24 A YES.

25 Q NOW, WHEN YOU WERE SEARCHING, YOU
26 SAID YOU FOUND IT ON THREE SITES. WHEN YOU SEARCH
27 IT, DOES THE WHOLE POEM DISPLAY WHEN YOU ARE
28 SEARCHING IT?

124

1 A I HAD TO GO THROUGH A BUNCH OF POEMS
2 TO FIND IT, TO FIND THAT PARTICULAR POEM.

3 Q IN FACT, WHEN YOU ARE SEARCHING AND
4 HAPPENED TO FIND IT, IT'S CORRECT, ISN'T IT, WHAT
5 COMES UP IS A LITTLE LINE TITLED ONLY LAME-ASS
6 PRICK?

7 A I CAN'T REMEMBER IF IT HAD THAT. I
8 BELIEVE IT JUST SAYS POEM SUB/SLASH SOMETHING ELSE,
9 WHEN I LOOKED AT IT.

10 Q SO, THE PERSON WHO IS LOOKING AT IT
11 INDIRECTLY WOULD SEE IT SAYS POEM?

12 A AT THOSE PARTICULAR SITES I FOUND,
13 YES.

14 Q UNLESS AND UNTIL YOU HAPPEN TO OPEN
15 IT AND SEE THE WORD POEM, YOU DON'T KNOW WHAT IS IN
16 THE POEM, DO YOU?

17 A NO.

18 Q IN FACT, WHEN YOU WENT AND LOOKED
19 WHEN YOU SAW THAT DIRECTLY, AND IT JUST SAYS POEM,
20 YOU DON'T HAVE ANY IDEA WHAT THOSE POEMS IN ANY OF
21 THE FILES WERE?

22 A THAT'S CORRECT.

23 Q WERE THEY ALL POEMS, BY THE WAY, IN
24 THOSE 20 OR SO THINGS?

25 A THERE WERE OTHER THINGS BESIDES THE
26 POEMS.

27 Q LIKE WHAT?

28 A CARDING SOFTWARE, HOW TO STEAL

125

1 CREDIT CARDS, HOW DO KILL SOMEONE, HOW DO YOU KILL
2 YOUR PARENTS, HOW DO YOU MAKE L.S.D., SELL
3 MARIJUANA.

4 Q YOU WERE TESTIFYING EARLIER THAT
5 STUFF CAME FROM SOME BOOK, THE ANARCHIST COOKBOOK?

6 A THE ANARCHIST COOKBOOK IS A BOOK
7 THAT CONTAINS STUFF SIMILAR TO THIS. THERE IS A
8 LOT OF STUFF AVAILABLE BESIDES THE ANARCHIST
9 COOKBOOK.

10 Q NOW, WITH REGARD TO THAT THING LIKE
11 THE ANARCHIST COOKBOOK, OR THOSE POEMS, IT IS EASY
12 TO FIND THAT STUFF ON THE INTERNET, ISN'T IT?

13 A YES.

14 Q ANYBODY COULD FIND IT?

15 A YES.

16 Q IT'S FREELY AVAILABLE?

17 A YES.

18 Q IT IS LEGAL, ISN'T IT?

19 A IF IT'S AVAILABLE, YES, IT IS LEGAL.

20 Q ANARCHIST COOKBOOK, FOR EXAMPLE, YOU

21 CAN FIND IT IN PUBLIC LIBRARIES, CAN'T YOU?

22 A I DON'T KNOW ABOUT PUBLIC LIBRARIES.

23 I NEVER WENT THERE AND LOOKED, BUT ON THE INTERNET.

24 Q ALSO AVAILABLE IN BOOKSTORES?

25 A AGAIN, I NEVER WENT TO A BOOKSTORE

26 LOOKING FOR IT.

27 Q OKAY.

28 THAT BOOK CONTAINS TOPICS JUST LIKE

126

1 THE ONES YOU JUST LISTED, RIGHT?

2 A YES.

3 Q AND, AS A MATTER OF FACT, IT IS

4 CORRECT, ISN'T IT, THE ANARCHIST COOKBOOK IS LISTED

5 IN THE LIBRARY OF CONGRESS?

6 A I NEVER LOOKED AT THE LIBRARY OF

7 CONGRESS. I COULDN'T TELL YOU.

8 Q ON THIS PARTICULAR POEM, THEN, IF I

9 UNDERSTAND YOUR TESTIMONY, DO YOU HAVE ANY WAY OF

10 KNOWING IF MICHAEL DEMIRDJIAN, FOR EXAMPLE, EVER

11 READ THAT POEM AT ANY TIME?

12 A I COULD TELL YOU THAT THAT FILE WAS

13 OPENED ON APRIL 14TH.

14 Q OKAY. ALONG WITH ALL THE OTHER
15 FILES?

16 A YES.

17 Q AND SINCE YOU SAID THERE WERE 20
18 FOLDERS THAT CONTAIN MANY SUBPARTS, THEY WERE ALL
19 OPENED ON THAT DATE; IS THAT RIGHT?

20 A COULD HAVE BEEN.

21 Q NOW, WHAT DOES OPENING MEAN? DOES
22 THAT MEAN YOU GIVE THE COMPUTER A COMMAND TO UNZIP
23 THIS PARTICULAR DESIGNATED LIST OF FILES?

24 A WELL, WHEN YOU OPEN IT, IT MEANS
25 THAT THERE ARE TWO WAYS THIS CAN HAPPEN: WHEN YOU
26 DOWNLOAD IT, IF YOU ARE USING WINZIP, AND MOST
27 ZIPPING SOFTWARE AVAILABLE ON THE INTERNET, YOUR
28 CLIENT HAD WINZIP IN HIS COMPUTER.

127

1 WHEN THE FILE IS DOWNLOADED --

2 Q YES.

3 A WINZIP WOULD AUTOMATICALLY COME UP
4 AND ASK IF YOU WANT TO UNZIP THE FILE RIGHT THERE
5 AND THEN.

6 WHEN YOU UNZIP IT, IT GOES INTO THE
7 UNZIPPED FOLDER. AT THAT TIME, WHEN IT WENT INTO
8 THE UNZIP FOLDER, IT HAD BEEN OPENED.

9 Q YES.

10 A THE WAY IT GETS SAVED IN THE

11 UNZIPPED FOLDER IS AS UNZIPPED.

12 Q THAT'S -- SOMEBODY GAVE IT A COMMAND
13 TO UNZIP AT THE TIME IT WAS DOWNLOADED?

14 A THAT'S THE ONLY WAY IT ENDED UP IN
15 IT.

16 Q WHAT IF SOMEBODY KEEPS IT IN FORMAT
17 AND UNZIPS IT LATER; IS THAT CORRECT?

18 A YES.

19 Q YOU GAVE US A DATE IN APRIL --

20 A YES.

21 Q -- IT WAS LAST ACCESSED.

22 DO YOU HAVE ANY WAY OF KNOWING
23 WHETHER OR NOT ALL OF THOSE 20 FOLDERS AND ALL
24 THERE SUBPARTS WERE DOWNLOADED IN ZIP CAPACITY IN
25 FEBRUARY, AND THEN IN APRIL SOMEBODY GAVE A COMMAND
26 TO UNZIP THOSE THINGS?

27 CAN YOU TELL US ONE WAY OR THE OTHER
28 IF THAT HAPPENED OR DIDN'T HAPPEN?

128

1 A I CAN'T TELL YOU.

2 Q SO, IT IS INDEED CONCEIVABLE,
3 WHOEVER DOWNLOADED THE WHOLE SHOOTING MATCH OF THE
4 20 FILES AND THE SUBPARTS ON THE 14TH OF MAY HAVE
5 LEFT IT IN ZIPPED FORMAT AND UNZIPPED IT IN APRIL?

6 A YES.

7 Q I GATHER, THEN, FROM YOUR SEARCH YOU
8 HAVE NO WAY OF KNOWING WHETHER ANY OF THE MATERIAL

9 WAS EVER ACTUALLY READ BY ANYONE, LET ALONE
10 MICHAEL; IS THAT RIGHT?

11 A IF IT ENDED UP IN THE UNZIPPED
12 FOLDER, SOMEBODY MUST HAVE READ IT, BECAUSE WHEN
13 YOU UNZIP IT, IT ACTUALLY DISPLAYS THE THINGS ON
14 THE SCREEN BEFORE IT TELLS YOU IF YOU WANT TO SAVE
15 IT SOMEWHERE.

16 Q ISN'T IT CONCEIVABLE ON THAT
17 COMPUTER, INDEED, ONE OF THE THINGS THAT COMPUTERS
18 CAN DO WOULD BE TO UNZIP MANY FILES SIMULTANEOUSLY,
19 ONE AFTER ANOTHER?

20 A NO. IT WILL ACTUALLY UNZIP ONE
21 FILE, AND GIVES YOU A LIST AND ASKS IF YOU WANTED
22 TO UNZIP ANOTHER ONE, AND SO ON.

23 Q THE WHOLE FOLDER, THOUGH, ALL THOSE
24 20 WERE ALL UNZIPPED; IS THAT CORRECT?

25 A YES.

26 Q IN FACT, WAS THERE ANYTHING LEFT IN
27 ZIP CAPACITY AT ALL? OR WAS EVERYTHING UNZIPPED ON
28 THAT COMPUTER THAT HAD BEEN DOWNLOADED?

129

1 A I BELIEVE THERE WAS. THE CHOCK ZIP
2 FILE WAS STILL ZIPPED AND IN THE DOWNLOAD FOLDER OF
3 AOL.

4 Q NOW, THE CHOCK FOLDER WAS STILL
5 ZIPPED, THAT'S THE ONE THAT THE THREE PHOTOS WERE
6 IN?

7 A YES.

8 Q THAT MEANS THAT NOBODY EVER OPENED

9 THAT FILE, RIGHT?

10 A NO, IT WAS OPENED.

11 Q I THOUGHT YOU SAID IT WAS ZIPPED?

12 A I CAN'T TELL YOU IF IT'S THE SAME

13 FILE. IT LOOKS LIKES ANOTHER COPY OF THE FILE, WAS

14 STILL IN THE DOWNLOADED FOLDER OF AOL.

15 Q JUST BEFORE YOU TOOK THE STAND

16 TODAY, YOU WERE SHOWN SOME PHOTOS -- NOT PHOTOS,

17 SOME DOCUMENTS DEALING WITH VIRUS SCAN; IS THAT

18 CORRECT?

19 A YES.

20 Q NOW, WHAT IS A VIRUS SCAN?

21 A A VIRUS SCAN IS DONE WHEN A VIRUS

22 DETECTS AND DELETES A UTILITY.

23 Q WOULD YOU TELL THE JURY, WHAT IS A

24 VIRUS?

25 A A VIRUS IS A MALICIOUS CODE THAT IT

26 COULD BE INSTALLED ON A COMPUTER, AND THEN IT DOES

27 MALICIOUS STUFF, SUCH AS WIPE OUT HARD DRIVES,

28 CREATE FUNNY THINGS ON SCREENS, OPEN, CLOSED C.D.

130

1 TRAYS TO BASICALLY DELETING EVERYTHING ON A HARD

2 DRIVE.

3 Q MANY DIFFERENT TYPES OF VIRUSES A

4 COMPUTER COULD BE VULNERABLE TO?

5 A YES.

6 Q AS OF JULY OF LAST YEAR, WERE THERE

7 MANY, MANY VIRUSES OUT THERE TO ATTACK AND DO FUNNY

8 THINGS TO COMPUTERS?

9 A YES.

10 Q DO YOU HAVE A PREDICTION OF WHAT ANY

11 ONE OR COMBINATION OF VIRUSES CAN DO TO A GIVEN

12 COMPUTER?

13 A ANY PREDICTION?

14 Q MAYBE PREDICTION IS A BAD WORD.

15 IN TERMS OF THE NUMBERS AND

16 DIFFERENT TYPES OF VIRUSES, GENERALLY, MANY OF

17 THESE DO DIFFERENT THINGS, INCLUDING SCRAMBLING

18 DATA?

19 A YES.

20 Q AT ANY TIME, DID YOU DO A VIRUS SCAN

21 ON THE HARD DRIVE OF MICHAEL DEMIRDJIAN'S COMPUTER?

22 A YES.

23 Q WHEN DID YOU DO IT?

24 A WHEN WE ORIGINALLY LOOKED AT IT, I

25 BELIEVE IN AUGUST, AND THEN DUE TO THE FACT THAT

26 MR. DEMIRDJIAN'S COMPUTER HAD NUMEROUS VIRUSES RAMS

27 ON HIS COMPUTER, WE STOPPED THE SCAN BECAUSE IT

28 JUST KEPT BEING INTERRUPTED BY ALL THE VIRE

131

1 DOWNLOADED TO HIS COMPUTER.

2 Q YOU SAY VIRE?

3 A CREATORS OF A VIRUS.

4 Q SO, HIS COMPUTER WAS, IN FACT, HAD

5 HOW MANY DIFFERENT VIRUSES?

6 A NO.

7 Q WHAT ARE YOU SAYING?

8 A WHAT I AM SAYING IS SOMEONE --

9 MR. DEMIRDJIAN'S COMPUTER HAD DOWNLOADED NUMEROUS

10 VIRE PROGRAMS. THESE ARE THE PROGRAMS THAT CREATE

11 THE VIRUSES, DIFFERENT VIRUSES ALL DOWNLOADED INTO

12 HIS COMPUTER.

13 Q UH-HUH.

14 A WHEN YOU RUN A VIRUS SCAN, IT

15 AUTOMATICALLY WOULD READ THAT THE VIRUS PROGRAM AND

16 IT WILL THINK IT IS A VIRUS AND TELL YOU, YOU HAVE

17 BEEN INFECTED.

18 Q THE DOCUMENTS I SHOWED YOU, LET ME

19 HAND THEM TO YOU TODAY, ARE YOU FAMILIAR WITH THE

20 PROGRAM CALLED NORTON ANTI VIRUS?

21 A YES.

22 Q THAT IS ONE OF THE NUMEROUS SOFTWARE

23 TO LINK UP AND USE ON VIRUSES AT THE TIME OF

24 PUBLICATION?

25 A YES.

26 Q DID YOU HAVE AN OPPORTUNITY TO

27 EXAMINE THE DOCUMENTS I AM SHOWING YOU?

28 A YES.

1 DOES THAT MEAN IN COMPUTER PARLANCE?

2 A THE VIRUS TRACES WERE REMOVED FROM
3 THOSE PARTICULAR FILES.

4 Q OKAY.

5 AND THEN IT SAYS SOME WERE
6 QUARANTINED; IS THAT CORRECT?

7 A 109 WERE INFECTED ITEMS QUARANTINED.

8 Q WHAT DOES THAT MEAN?

9 A IT'S SET ASIDE, CAN'T ACCESS ANY
10 MORE. NORTON WILL ALWAYS LOOK AT THEM AS A VIRUS,
11 WON'T OPEN THIS UP.

12 Q DID YOU GET A RESULT SIMILAR TO
13 THAT?

14 A WHAT I GOT IT, ACTUALLY PICKED UP
15 MOST OF THE -- DIDN'T PICK UP THE INFECTED ITEMS
16 WERE FOUND, PICKED UP THE QUARANTINED ITEMS.

17 Q I SEE.

18 A NUMEROUS QUARANTINED ITEMS, WHICH
19 LEAVES ME TO BELIEVE THE VIRUS PROGRAMS WERE ON
20 THERE.

21 Q YOU DIDN'T SEE THE VIRE PROGRAMS.
22 WHAT YOU SAW WERE -- WAS SOME THAT WERE
23 QUARANTINED; IS THAT RIGHT?

24 A I AM SORRY?

25 Q YOU JUST TOLD US IT WAS SEEING
26 QUARANTINED ITEMS THAT LED YOU TO BELIEVE VIRE
27 PROGRAMS WERE PRESENT?

28 A YES.

134

1 Q YOU DIDN'T ACTUALLY CHECK TO SEE IF
2 THEY REALLY WERE VIRE PROGRAMS?

3 A YES, I DID.

4 Q OKAY.

5 AND -- BUT WHEN YOU DID THE SCAN,
6 WHAT PROGRAM DID YOU USE FOR TO CHECK FOR VIRUSES?

7 A WE USE MC AFEE, WHICH IS ANOTHER
8 LEADING SOFTWARE.

9 MR. MATHEWS: ALL RIGHT.

10 I HAVE NOTHING FURTHER. LET ME MARK
11 THAT EXHIBIT FOR IDENTIFICATION, AND ALSO I FORGOT
12 THERE IS TWO OTHER PAGES BESIDES THE SUMMARY.

13 CAN YOU TELL US WHAT THOSE APPEAR TO
14 BE?

15 A IT APPEARS TO BE -- SAYS ACTIVITY
16 LOG, DATED JANUARY 22ND THE YEAR 2001, AND IT
17 SHOWS -- IT APPEARS TO BE A LOG FOR A VIRUS SCAN,
18 AND THIS IS A LOG SOME VIRUS SCAN WOULD CREATE.

19 MR. MATHEWS: OKAY. THANK YOU.

20 MAY I MARK THIS EXHIBIT COLLECTIVELY
21 AS DEFENDANTS AA, THE THREE PAGES HERE?

22 THE COURT: YES, DEFENDANT'S AA, THREE
23 PAGES.

24

25 (DEFENDANT'S EXHIBIT AA WAS MARKED

26 FOR IDENTIFICATION: DOCUMENT.)

27

28 MR. MATHEWS: I HAVE NOTHING FURTHER OF

135

1 DETECTIVE ZAHREDDINE.

2 THE COURT: ANYTHING, PEOPLE?

3 MS. DO: MAY I HAVE A MOMENT, YOUR HONOR?

4

5 (PAUSE IN THE PROCEEDINGS.)

6

7 REDIRECT EXAMINATION

8

9 BY MS. DO:

10 Q DETECTIVE ZAHREDDINE, IN TERMS OF
11 VIRUSES, THE COMPUTER CAN BE INFECTED BY A VIRUS,
12 CORRECT?

13 A YES.

14 Q AND A COMPUTER CAN ALSO BE THE
15 SOURCE OF INFECTING OTHER COMPUTERS?

16 A THAT'S THE ONLY WAY IT CAN AFFECT
17 OTHER COMPUTER.

18 Q CORRECT.

19 A ANOTHER SOURCE.

20 Q ON THIS COMPUTER YOU EXAMINED THAT
21 CAME FROM MICHAEL DEMIRDJIAN'S ROOM, YOU FOUND A
22 NUMBER OF PROGRAMS THAT ALLOWS HIS COMPUTER TO

23 INFECT OTHERS; IS THAT CORRECT?

24 A THAT'S CORRECT.

25 Q BOTTOM LINE, DOES THE VIRUS HAVE
26 ANYTHING TO DO WITH THE POEMS AND THE PHOTOS WE
27 HAVE BEEN TALKING ABOUT?

28 A NO.

136

1 Q NOW, MR. MATHEWS ASKED YOU A NUMBER
2 OF QUESTIONS ABOUT ZIP AND UNZIP.

3 BOTTOM LINE, WHEN YOU GO TO AN
4 INTERNET SITE WHERE IT IS DIZZIE MATERIALS, DO YOU
5 HAVE THE CAPABILITY OF LOOKING AT IT ON-SCREEN IN
6 THAT INSTANT?

7 A YES.

8 Q YOU HAVE THE OPTION OF DOWNLOADING
9 IT AND SAVING IT INTO WHAT YOU DESCRIBED AS HARD
10 DRIVE, CORRECT?

11 A YES.

12 Q ONCE YOU SAVED IT TO YOUR HARD
13 DRIVE, AT A LATER DATE, IF YOU WANTED TO LOOK AT IT
14 AGAIN, YOU CAN DO THAT, CORRECT?

15 A CORRECT.

16 Q IN THIS CASE, WHEN YOU EXAMINED HIS
17 COMPUTER, DID YOU FIND EVIDENCE THAT THE POEM WAS,
18 IN FACT, ACCESSED ON APRIL THE 14TH?

19 A YES.

20 Q AND WITH RESPECT TO THE CHOKE PHOTOS

21 YOU GAVE US THREE DATES, CORRECT?

22 A I BELIEVE IT WAS TWO DATES.

23 Q OKAY. LET ME GET THE EXHIBITS.

24 SHOW WHAT YOU WE MARKED YESTERDAY AS

25 78, 79 AND 80.

26 NOW, THESE THREE PHOTOGRAPHS YOU

27 FOUND IN A SUBDIRECTORY OF THE SAME FILE WHERE THE

28 POEM CAME FROM, CORRECT?

137

1 A YES.

2 Q NOW, WHAT WAS THE FIRST DATE

3 ASSOCIATED WITH THOSE PHOTOS?

4 A MARCH 11TH.

5 Q AND THAT DATE YOU SAID COULD EITHER

6 BE ONE OF TWO THINGS: IT COULD BE THE DATE THAT IT

7 WAS -- THE ORIGINATION DATE FROM THE INTERNET,

8 CORRECT?

9 A YES.

10 Q OR IT COULD BE THE DATE THAT IT WAS

11 WRITTEN TO HIS HARD DRIVE?

12 A YES.

13 Q YOU FOUND A SECOND DATE ASSOCIATED?

14 A MAY 4TH.

15 Q OKAY.

16 SO, THAT MAY 4TH DATE IS ANOTHER

17 DATE WHICH THOSE PHOTOS COULD THEN BE OPENED AND

18 VIEWED FROM HIS HARD DRIVE, CORRECT?

19 A YES.
20 Q THEN YOU SAID YOU FOUND THESE SAME
21 PHOTOGRAPHS DOWNLOADED ON AN ANOTHER PART OF THE
22 HARD DRIVE, CORRECT?
23 A I SAW THE SAME FILE AS THIS -- IT'S
24 CALLED A CHOKE.ZIP FILE WHERE THESE PHOTOGRAPHS
25 CAME FROM.
26 Q OKAY.
27 A APPEARED TO HAVE BEEN DOWNLOADED ON
28 JULY 23RD.

138

1 Q THAT WAS BASED ON UPON THIS WHICH WE
2 HAVE MARKED AS EXHIBIT 81, CORRECT?
3 A YES.
4 Q THAT PARTICULAR HISTORY TELLS YOU
5 HIS ACTIVITY WITH AOL ON JULY THE 23RD; IS THAT
6 CORRECT?
7 A YES.
8 Q AND ON JULY THE 23RD, WHAT THAT
9 TELLS US IS THAT HE DOWNLOADED THOSE SAME
10 PHOTOGRAPHS AGAIN, CORRECT?
11 MR. MATHEWS: OBJECTION. MOVE TO STRIKE.
12 NO FOUNDATION.
13 THE COURT: SUSTAINED.
14 MR. MATHEWS: THAT MR. DEMIRDJIAN
15 DOWNLOADED ANYTHING ON THAT DATE.
16 THE COURT: OBJECTION SUSTAINED.

17 MS. DO: REPHRASE.

18 Q THAT PARTICULAR DOCUMENT TELLS YOU
19 THAT SOMEBODY DOWNLOADED THOSE SAME CHOKE
20 PHOTOGRAPHS ON JULY THE 23RD, CORRECT?

21 A YES.

22 Q NOW, MR. MATHEWS ASKED YOU ABOUT A
23 NUMBER OF OTHER DOCUMENTS THAT YOU FOUND WITH THE
24 POEM IN A PARTICULAR FILE, DO YOU RECALL THAT?

25 A YES.

26 Q DID YOU WRITE AN INVESTIGATIVE
27 ANALYSIS REPORT DETAILING ALL OF YOUR FINDINGS?

28 A YES.

139

1 Q COULD YOU PLEASE JUST TELL US WHAT
2 THE OTHER DOCUMENTS WERE THAT YOU FOUND WITH THE
3 POEM.

4 A WOULD YOU LIKE ME TO READ THEM?

5 Q YES.

6 A THERE WAS ONE SAYS, BREAKING INTO
7 HOUSES, BY J. ROGERS; STEALING, BY J. ROGERS; HOW
8 TO HOT WIRE CARS, BY J. ROGERS; HOW NOT TO GET
9 KILLED, BY J. ROGERS; IGNITION DEVICES, LAW
10 PROTECTING JUVENILE OFFENDER; CREDIT CARD FRAUD;
11 YUMMY MARIJUANA RECIPES; PSYCHEDELIC; L.S.D.; NAIL
12 GRENADES, ANOTHER NAIL GRENADE RAP SONG; TOUGH
13 TALK; CREDIT CARD INFORMATION; VANDALIZE AT THE
14 ZOOS; HOUSEHOLD TORTURE TECHNIQUES, INCLUDING

15 TORTURE STALKER; HOW TO KILL YOUR PARENTS; HOW TO
16 GET CREDIT CARD NUMBERS; AND ANOTHER HOW TO KILL
17 YOUR PARENTS, SOME OF THE STUFF.

18 Q I AM SORRY. WERE YOU FINISHED?

19 A YES.

20 Q THESE ARE ALL DOCUMENTS DOWNLOADED
21 FROM THE INTERNET, CORRECT?

22 A YES.

23 Q AND THESE DOCUMENTS WERE FOUND ALONG
24 WITH THE POEM IN ONE PARTICULAR FILE?

25 A ONE OF THE SUBFOLDERS, YES.

26 Q NOW, MR. MATHEWS ALSO ASKED YOU SOME
27 QUESTIONS ABOUT CHILDREN AND THE INTERNET.

28 BASED UPON YOUR EXPERIENCE AND YOUR

140

1 TRAINING AND YOUR EXPERTISE, DID YOU HAVE AN
2 OPINION WHETHER OR NOT THE USER OF THIS PARTICULAR
3 COMPUTER IS SOPHISTICATED WITH THE INTERNET?

4 A YES.

5 Q WHAT WAS YOUR OPINION?

6 A THAT HE HAS A HIGHER KNOWLEDGE OF
7 COMPUTERS AND THE INTERNET THAN THE REGULAR TYPICAL
8 INTERNET USERS.

9 Q WHAT IS THAT BASED UPON?

10 A BASED UPON THE FILES, AND THEN THE
11 DIFFERENT PROGRAMS THAT WERE FOUND IN HIS COMPUTER.

12 Q WHAT KIND OF FILES ARE YOU REFERRING

13 TO?

14 A NUMEROUS PROGRAMS THAT DEAL
15 SPECIFICALLY WITH, AGAIN, VIRUSES INFECTING OTHER
16 COMPUTERS. HOW TO, WHAT WE CALL INTRUSION INTO
17 OTHER COMPUTERS, JUST NUMEROUS PROGRAMS WITH TITLES
18 THAT ARE SPECIFICALLY MADE FOR PEOPLE TO WANT TO
19 HACK INTO COMPUTERS OR DO A MURDER.

20 MS. DO: NO FURTHER QUESTIONS.

21 THE COURT: MR. MATHEWS.

22 MR. MATHEWS: YES, YOUR HONOR.

23

24 RECROSS-EXAMINATION

25

26 BY MR. MATHEWS:

27 Q DETECTIVE ZAHREDDINE, TALKING ABOUT
28 SOPHISTICATED COMPUTER USERS, WHAT IS A REGULAR

141

1 COMPUTER USER, AS YOU USE THAT TERM?

2 A THAT PERSON THAT GETS ON -- IF THEY
3 WANT TO GET ON THE INTERNET, THEY WILL GET ON THE
4 INTERNET, GO THROUGH DIFFERENT SITES, GO TO SITES
5 THAT INTEREST THEM, WHETHER THEY ARE GAMES, MUSIC,
6 NEWS. SHOPPING FOR ABOUT WHATEVER INTERESTS THEM.
7 ORDERING STUFF ON THE INTERNET. E-MAILING FRIENDS,
8 CHATTING WITH FRIENDS, THAT SORT OF THING.

9 Q TO WHAT EXTENT ARE YOU FAMILIAR WITH
10 HOW TEENAGERS RELATE TO THE INTERNET, JUST REGULAR

11 COMPUTER USERS OR SOME OF THEM HAVE A LOT MORE
12 COMPUTER FAMILIARITY IT THAN YOUR REGULAR TYPICAL
13 USERS?

14 A MOST TEENAGERS WILL HAVE MORE THAN
15 AN ADULT COMPUTER USER, YES.

16 Q IN TERMS OF WHAT YOU FOUND
17 DOWNLOADED ON THIS COMPUTER, DO YOU HAVE AN OPINION
18 AS TO WHETHER OR NOT THIS PARTICULAR SPECTRUM OF
19 THINGS THAT YOU FOUND IN THREE MILLION GIGABYTES
20 WAS TYPICAL STUFF THAT TEENAGERS WOULD RUMMAGE
21 THROUGH?

22 A IT IS NOT TYPICAL STUFF A TEENAGER
23 WILL RUMMAGE THROUGH.

24 Q TELL THE JURY WHAT -- HOW YOU ARE
25 FAMILIAR WITH TYPICAL AREAS THEY RUMMAGE THROUGH.

26 MS. DO: OBJECTION. ASKED AND ANSWERED.

27 THE COURT: OVERRULED. HE CAN EXPLAIN THAT
28 ANSWER.

142

1 THE WITNESS: LIKE I SAID, AGAIN, I HAVE
2 INSPECTED NUMEROUS COMPUTERS ON NUMEROUS CASES AND
3 DURING MY WORK AT THE POLICE DEPARTMENT. I HAVE
4 GONE THROUGH A LOT OF THEM, WHICH WERE FOR
5 TEENAGERS THAT CHAT ON LINE ON THE INTERNET, AND I
6 HAVE SEEN THE KIND OF STUFF THEY WOULD GO TO.

7 I HAVE ATTENDED, AGAIN, NUMEROUS
8 SEMINARS AND THEN SPOKE TO NUMEROUS INVESTIGATORS

9 FROM OTHER AGENCIES ABOUT THE CHILDREN AND
10 JUVENILES AND TEENAGE'S HABITS OF SURFING ON THE
11 INTERNET OR THEIR COMPUTER USE.

12 Q HOW MANY TEENAGERS' COMPUTERS YOU
13 HAVE KNOWN WERE ACTUALLY RUN AND OWNED BY TEENAGERS
14 HAVE YOU ACTUALLY EXAMINED, SIR?

15 A 30 OR 40.

16 Q 30 OR 40?

17 A YES.

18 Q NOW, IN TERMS OF THE WORD DIZZIE,
19 FOR EXAMPLE, IF SOMEONE JUST TYPED THE WORD DIZZIE,
20 COULD YOU FIND THE POEMS OF THIS FELLOW DIZZIE?

21 A YOU HAVE TO LOOK VERY HARD BECAUSE
22 THE WORD DIZZIE IS A COMMON WORD. YOU WILL HAVE
23 PROBABLY THOUSANDS, IF NOT HUNDREDS OF THOUSANDS OF
24 HITS. YOU CAN EVENTUALLY SORT THROUGH THEM AND
25 FIND IT, YES.

26 Q DO YOU RECALL BEING ASKED A QUESTION
27 ON MARCH 19TH AND 20TH AT A HEARING IN THIS COURT
28 THAT REGULAR INTERNET USERS, THE ONE YOU TALKED

143

1 ABOUT, IF HE TYPED IN THE DIZZIE, JUST THE WORDS
2 DIZZIE, YOU CAN ACCESS WHAT YOU HAVE DESCRIBED AS
3 THE INTERNET MATERIAL THAT IS IN EXHIBIT 4 TO
4 WITNESS THAT FILE?

5 A YES.

6 Q REMEMBER BEING ASKED THAT?

7 A YES.

8 Q DO YOU REMEMBER YOUR ANSWER?

9 A IT WOULD HAVE BEEN YES.

10 Q FOR EXAMPLE, THAT POEM, THIS ONE

11 THAT SAYS LAME-ASS PRICK, IF YOU TYPED THE WORD

12 PRICK, COULD THAT POEM BE DISCOVERED ON THE

13 INTERNET?

14 A IT IS POSSIBLE. I DIDN'T TRY IT.

15 BUT THEORETICALLY, IT SHOULD COME UP, YES.

16 Q IF I TYPED IN THE WORD ROCK, DO YOU

17 THINK I CAN GET A DISSERTATION ON ROCKS?

18 A PROBABLY A TRILLION OF THEM.

19 Q IF I NARROWED THE SEARCH AND SAY HOW

20 DO I KILL SOMEBODY WITH A ROCK, DO YOU THINK I CAN

21 GET A DISSERTATION ON THAT?

22 A I AM PRETTY SURE YOU WOULD.

23 Q MIGHT GET SOME BIBLICAL REFERENCES?

24 A PROBABLY COULD, YES.

25 Q LET HIM WHO HIS WITHOUT SIN CAST THE

26 FIRST STONE?

27 A I DON'T SEE WHY NOT.

28 Q WITH REGARD TO THE MATERIAL, NOW,

144

1 YOU HAVE DESCRIBED THESE FOLDERS, THERE WERE 20

2 WITH OR SO IN THE PARTICULAR THING, WITH ALL THESE

3 SUBFILES, HOW MANY DIFFERENT FOLDERS LIKE THAT DID

4 YOU FIND IS FULL OF SUBFILES?

5 A NUMEROUS.

6 Q WHAT DO YOU MEAN NUMEROUS? HOW

7 MANY? HUNDREDS? THOUSANDS?

8 A LESS THAN A HUNDRED. I WOULD SAY

9 POSSIBLY MORE THAN 20.

10 Q OKAY.

11 NOW, WITH REGARD TO THIS BUSINESS OF

12 DOWNLOADING, YOU DON'T KNOW WHO DOWNLOADED ANYTHING

13 IN PARTICULAR, RIGHT? JUST THAT YOU FOUND ON IT

14 THIS MACHINE?

15 A THAT IS TRUE.

16 Q IN YOUR TRAINING ABOUT KIDS, DO KIDS

17 IN YOUR EXPERIENCE SOMETIMES SHARE COMPUTERS?

18 A YES.

19 Q DO THEY SOMETIMES SHARE DATA, SEND

20 DATA BACK AND FORTH?

21 A YES.

22 Q DO THEY SOMETIMES SHARE SCREEN

23 NAMES?

24 A I DON'T KNOW ABOUT THAT. I NEVER

25 EXPERIENCED THAT. BUT IF YOU SAY SO, PROBABLY

26 WOULD.

27 Q I AM NOT THE EXPERT. YOU ARE.

28 IF A KID HAS SOMEBODY ELSE'S SCREEN

145

1 NAME, CAN THEY USE IT?

2 A IF THEY HAVE ANOTHER PERSON'S SCREEN

3 NAME AND A PASSWORD, YES, THEY CAN USE IT.

4 Q JUST LIKE IF SOMEBODY HAD A

5 CELLPHONE, GIVE IT TO SOMEBODY ELSE, THEY CAN USE

6 IT?

7 A CELLPHONES DON'T REQUIRE PASSWORDS.

8 SCREEN NAMES DO.

9 Q AND AN INDIVIDUAL GIVES THE SCREEN

10 NAME OR PASSWORD, IF THEY FIND IT, THEY CAN USE IT?

11 A YES.

12 Q WITH REGARD TO THESE PHOTOS, COUNSEL

13 HAS JUST ASKED YOU ABOUT A DATE OF JULY 23RD, I

14 THINK. WITH REGARD TO THE PHOTOS, DID I HEAR YOU

15 SAY THAT IN YOUR SEARCH YOU DISCOVERED A ZIP FILE

16 THAT WAS -- HAD SOMETHING DONE TO IT ON JULY 23RD?

17 A A ZIPPED FILE THAT WAS STILL IN A

18 ZIPPED FORMAT IN THE AOL DOWNLOAD FOLDER.

19 Q OKAY.

20 NOW, WHEN YOU SAY IT'S STILL IN THE

21 ZIPPED FORMAT, DOES THAT MEAN IT HAS NOT BEEN

22 OPENED?

23 A YES.

24 Q THAT MEANS NO ONE LOOKED AT IT?

25 A YES.

26 Q BY THE WAY, HAVE YOU EVER HEARD

27 ANYONE DOING A SEARCH ON JUST WORD, FOR EXAMPLE,

28 ROCK?

1 A HAVE I EVER HEARD A SEARCH WITH JUST
2 THE WORD ROCK?
3 Q YES.
4 A I DID IT.
5 Q WHAT DID YOU GET? ZILLIONS OF
6 RESPONSES?
7 A YES.
8 Q DID SOME OF THEM DEAL WITH ROCK AND
9 ROLL?
10 A YES.
11 Q ROCK MUSIC?
12 A YES.
13 Q ROCK HOUNDS?
14 A YES.
15 Q ROCK QUARRIES?
16 A ANY ROCK YOU CAN THINK OF.
17 Q I SEE.
18 AND WITH REGARD TO THAT POEM, IS IT
19 CORRECT THAT FROM WHAT YOU FOUND THAT WAS DONE
20 ORIGINALLY, I THINK YOU SAID DOWNLOADED FROM ZIP
21 FORMAT IN FEBRUARY OF THE YEAR 2000; IS THAT RIGHT?
22 MS. DO: OBJECTION. ASKED AND ANSWERED.
23 THE COURT: OBJECTION WILL BE SUSTAINED.
24 MR. MATHEWS: OKAY. NOTHING FURTHER.
25 THE COURT: THANK YOU, SIR. YOU CAN STEP
26 DOWN.
27
28 (REQUESTED PROCEEDINGS CONCLUDED.)

1 SUPERIOR COURT OF THE STATE OF CALIFORNIA
2 FOR THE COUNTY OF LOS ANGELES
3 DEPARTMENT NE J HON. JOSEPH F. DE VANON, JUDGE
4
5 THE PEOPLE OF THE STATE OF CALIFORNIA,)
6 PLAINTIFF,) NO. GA043471
7 VS.)
8 MICHAEL DEMIRDJIAN,) REPORTER'S
 DEFENDANT (S))
)
9 _____)

10
11 I, SHARON P. BOYER, OFFICIAL COURT
12 REPORTER OF THE SUPERIOR COURT OF THE STATE OF
13 CALIFORNIA, FOR THE COUNTY OF LOS ANGELES, DO
14 HEREBY CERTIFY THAT THE FOREGOING PAGES 1 THROUGH
15 146 COMPRISE A TRUE AND CORRECT TRANSCRIPT OF THE
16 PARTIAL REQUESTED PROCEEDINGS ON THE DATES OF MARCH
17 19, APRIL 4 & APRIL 5, 2001.

18
19 DATED THIS 14TH DAY OF DECEMBER, 2001.

20

21

22

23

24 /S/ SHARON P. BOYER, CSR #4329
 OFFICIAL REPORTER

25

26

27

28